

Kaushal Kishor v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2017 · Writ - C No. 14592 of 2017 · **Writ disposed; security-amount dispute relegated to CGRF and Ombudsman under clause 7.10; connection to be processed if the demanded security is deposited.**

HEADNOTE

A dispute over the quantum of security demanded for a new electricity connection cannot be decided in writ jurisdiction under Article 226. The consumer may approach the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005. If the demanded security is deposited, the licensee shall process the connection application.

FACTUAL SUMMARY

Kaushal Kishor petitioned the Allahabad High Court for a mandamus directing the Executive Engineer (respondent no. 3) to grant a power connection for his Atta Chakki. Counsel for the licensee submitted that there was no objection to the connection if the petitioner deposited a security of Rs.1,02,510 as estimated by the department. The petitioner disputed that amount. The Division Bench heard both sides on 10 April 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

new connection — disputed security — CGRF/Ombudsman

HOLDING

A dispute over the quantum of security demanded for grant of a new power connection cannot be entertained under Article 226. The consumer may approach the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005. If the petitioner deposits the demanded security of Rs.1,02,510, the licensee shall process the application for connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS.1,02,510 WAS THE CORRECT SECURITY FOR THE ATTA CHAKKI CONNECTION

Quantum left to CGRF and Ombudsman under clause 7.10. ¶ 1